

File No: EXP202401784

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 8, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202401784

Sanctioning Procedure No: PS/0068/2024

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 13, 2023. The complaint is directed against B.B.B., with NIF ***NIF.1, president of the Works Council of the company DIMAGAZA, S.L. with NIF B88439856 (hereinafter, the respondent/the claimed).

In the received document, the complainant states, in summary:

- That at the time he was providing services as a worker at DIMAGAZA, a collective dismissal procedure was carried out, of which he was affected.
- Within the aforementioned procedure, on January 26, 2023, a meeting was held between the representatives of the workers and the works council, the minutes of which were published on the notice board that the aforementioned company has in a space open to the transit of persons not related to it, without any security measures.
- That in said minutes, a list of workers affected by the collective dismissal was attached, among which is the complainant, in which their personal data is exposed, such as their name and surname, ID number, date of birth, social security affiliation number, seniority in the company, etc.

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- After verbally requesting and via email a copy of the aforementioned minutes from the president of the works council, he indicated on February 4, 2023, that it had been published on the company's notice board, at which point he verified that the annexed lists to the minutes, containing the personal data of the workers affected by the dismissal, had been posted on the said notice board, in the conditions that can be observed in the photographs provided along with the complaint.

Along with the complaint, the following is provided:

- A copy of the minutes of the meeting of January 26, 2023, whose fourth section mentions 3 personal data of 4 workers included in an agreement with social security, and whose Annex contains a list showing 9 personal data of 43 workers affected by the collective dismissal.
- Photographs of the notice board where the minutes are published separately, and the two pages that make up the annex with the list of workers affected by the dismissal. It can be seen that there is no anonymization of the personal data appearing in the annex. It cannot be determined whether the personal data appearing in section 4 of the body of the minutes has been anonymized.
- Various emails exchanged on February 3 and 4, 2023, between the complainant and the president of the works council, in which the latter indicates that the minutes were displayed on the aforementioned notice board.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the works council of DIMAGAZA, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on June 28, 2023, as stated in the acknowledgment of receipt in the file. However, DIMAGAZA did not respond to this request.

THIRD: On August 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On January 10, 2024, this Agency became aware of the existence of an email dated February 6, 2023, submitted in the sanctioning procedure processed under number PS/00447/2023, which originates from the complaint referred to in this procedure.

This is an email sent by the President of the Works Council to whom the complaint is directed, Mr. C.C.C., to Mr. D.D.D. (who is listed as the Director of the Offices of DIMAGAZA, branch of Arrecife, according to the

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3/16

Notarial powers attached to the written allegations). In the email dated February 6, 2023, Mr. B.B.B. acknowledges that he was the one who physically placed the minutes along with its annex on the notice board, without anonymizing the personal data contained therein, literally stating the following: "Good afternoon A.A.A.,

This afternoon I went to the warehouse to check the documentation that was put on the notice board. And indeed, the signed agreement, the minutes of the workers' assembly ratifying the agreement, and the list of workers containing their names, ID numbers, seniority in the company, and social security numbers were all there. I suppose that is what this lady is referring to. I sincerely regret it because all the documents were stapled together, and I did not realize it at that moment. In any case, I have removed them. I have also sent a copy of the letter and an explanatory letter regarding the circumstances of these two workers to our legal advisor at the union for their information. I cannot do much more. I have also told her that we will not respond to anything.

Best regards.

B.B.B.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary issues

The publication of the minutes regarding the collective dismissal process referred to in this procedure, which was carried out by the respondent on the notice board of the works council, is considered an

operation of personal data processing, which is subject to the regime provided for in the GDPR, as well as its implementing provisions, in accordance with the provisions of Article 4.1, 2, and 7 of the GDPR, which states the following:

“Article 4 Definitions

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4/16

For the purposes of this Regulation, the following definitions shall apply:

1) “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)

7) “data controller” or “controller”: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its appointment may be provided by the law of the Union or of the Member States (...)

In the present case, it is evidenced that on February 4, 2023, 9 personal data of 43 workers of the company DIMAGAZA were exposed on the notice board of the works council, which were included in the minutes of January 26, 2023, by which the conclusion of the consultation period that ends the collective dismissal process initiated in the company is agreed upon. This agreement is adopted between what is referred to as the PE (business party represented by a member of it) and the CR (Representative Commission of the workers of the company, formed by 4 representatives of the workers, one of whom was the respondent, B.B.B. (who is also the President of the Works Council). Specifically, in accordance with the provisions of Article 4.1 of the GDPR, the following personal data of the workers affected by the collective dismissal process were disclosed (personal data that appeared visible, without anonymization):

- In section 4 of the body of the minutes, the following personal data of 4 dismissed workers of the company who were going to have an agreement with social security were listed: name and surname, ID number, position, and date of birth.

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5/16

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And in the annex attached to the minutes, 9 personal data of 43 workers affected by the dismissal were listed (including the 4 mentioned in section 4 of the minutes): name and surname, ID number, social security affiliation number, job position, professional group, date of birth, seniority date, workplace, and CCC (Contribution Account Code).

The publication of the minutes carried out on February 4, 2023 (body and annex) on the company committee's notice board, making it accessible and visible to all employees and individuals who could access the location where it was displayed, constitutes a personal data processing operation, in the sense expressed in Article 4.2 of the GDPR, since it involved the disclosure or communication of the personal data of the 43 workers appearing therein to all those who had access to the aforementioned

notice board of the company committee.

In accordance with the provisions of Article 4.7 of the GDPR, it should be noted that the data controller is the person or body that decides on the purposes and means of the processing operation in question (which in this case is publishing the minutes on the notice board).

According to the provisions of the Guide "Data Protection in Labor Relations" published by the AEPD in May 2021, the person responsible for the processing of the operation of disclosing personal data on company notice boards is considered to be "the one who physically places the information on the notice board."

There is consistent evidence that the person responsible for this processing operation consisting of publishing the minutes on the company committee's notice board was the president of the Company Committee, against whom the present procedure is directed, since:

- It is accredited and recognized that the respondent held the triple status of signatory of the minutes, president of the company committee, and member of the monitoring committee provided for in the minutes to respond to incidents arising from the collective dismissal process, so he had a copy of the minutes and its annex, having access to the personal data it contained and to the company committee's notice board.

- Furthermore, it was the respondent who responded to the information request made by the claimant on February 4, 2023, informing him that: "there is a complete copy of said minutes on the company's personnel notice board in Puerto Naos available for consultation by all workers." This response was sent on the same day as the publication of the minutes and list, implying that the respondent was aware that this publication had been made for general dissemination, implicitly assuming his agreement with this dissemination.

- Such rational indications that the respondent was the one who physically placed the minutes and its annex on the notice board are confirmed when knowledge of the email dated February 6, 2023, which is attached to this procedure, is obtained. In this email, the respondent sent to the Director of DIMAGAZA's offices, he implicitly acknowledges having posted the minutes and annex on the company committee's notice board "by mistake," and having removed it, literally stating, in response to the company director regarding the publication of the annex, the following: "And I truly regret it because all the documents were stapled and I didn't realize it at that moment. In any case, I have removed them."

Consequently, the respondent is the presumed responsible party to whom this sanctioning procedure should be directed for the unauthorized disclosure of personal data that resulted from the publication of the aforementioned minutes on the company committee's notice board, in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the protection of personal data and guarantee of digital rights (hereinafter, LOPPD):

"Article 70. Responsible parties.

1. Those subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law are: a) The controllers of the processing. b) The processors of the processing. c) The representatives of the controllers or processors not established in the territory of the European Union. d) The certification entities. e) The accredited entities supervising the codes of conduct. (...)"

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR establishes that the data controller must protect the integrity and confidentiality of the personal data being processed, in the following terms:

"1. Personal data shall be: (...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures."

Specifically, Article 5 of the LOPDGDD develops this duty of confidentiality, stating the following:

"1. The controllers and processors of personal data, as well as all persons involved in any phase of this, shall be subject to the duty of confidentiality referred to in Article 5.1.f) of Regulation (EU) 2016/679.

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7/16

2. The general obligation indicated in the previous section shall be complementary to the duties of professional secrecy in accordance with the applicable regulations.

3. The obligations established in the previous sections shall remain in effect even after the relationship of the obligated party with the data controller or processor has ended.”

According to the provisions of the “Guide on Data Protection in Employment Relationships” by the AEPD from May 2021: “Both duties (confidentiality and professional secrecy) are necessary and constitute a guarantee for the fundamental right to data protection. Secrecy and confidentiality ensure that personal data is only known by the affected individual and by those users of the organization whose profile grants them the competence to use, consult, modify, or include the data in the information systems.”

The so-called principle of integrity and confidentiality of personal data is violated when what Article 4, Section 12 of the GDPR broadly defines as “personal data security breaches” (hereinafter referred to as personal data breach) occurs. These are defined as “all security violations that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

In this case, it is evidenced that a personal data breach occurred under the circumstances mentioned above, categorized as a confidentiality breach; as a consequence of having made public 9 personal data of 43 employees of the company who were affected by the collective dismissal process initiated therein, by publishing the minutes and its annex on the company committee's notice board, exposing the personal data contained therein, as acknowledged in the email he sent to the company director on February 6, 2023.

That the duty to inform workers is essential in the labor field is an unquestionable fact, but like any other right, it is not absolute or unlimited, but must always be exercised within the limits established by the legislator, among which is the protection of personal data, in accordance with the provisions of Article 18 of our Constitution. The protection of both rights (information and personal data protection) is compatible. It is only required that the members who make up these bodies act with the due diligence that corresponds to them by virtue of their position and as responsible for the processing of personal data, which requires that they be properly trained on how the processing should be carried out without violating the current special data protection regulations.

According to the provisions of the aforementioned Guide on personal data protection in employment relationships, the access to personal data known by the members of the Works Council (as representatives of the workers) allows them to carry out certain processing operations that must be governed by the

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8/16

compliance with the principles of personal data protection, which implies adherence to certain limits:

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“Data may only be communicated when it is strictly necessary for the fulfillment of the duties established by the ET for the company. In all cases where the information can be presented in a statistical or anonymized manner allowing the committee to fulfill its functions, this method will be chosen. It is not justified for representatives to know the private addresses of workers, for example, to send electoral propaganda. On the other hand, accessing the list of members of a job bank would be justified (STS 5761/2015, of December 21, Social Chamber).

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The recipients of the information will be those provided for by the regulation that enables the communication of data (...)"

These limits extend to publications made on the company's bulletin boards, as indicated by the aforementioned Guide expressly:

"The publication of informative notes, announcements, calls, statements, and even judgments on such bulletin boards constitutes a common practice. Technological evolution has led to online bulletin boards. When those notes, announcements, or documents contain personal data, the mere publication constitutes processing that may involve access to data by third parties lacking legitimacy.

This requires taking into account a series of aspects in order to properly apply the regulations and guarantee the rights of the individuals concerned:

The entity responsible for the processing will be the one that materially places the information on the bulletin board.

Only authorized users should have access to the bulletin board. (...)

The principle of minimization must be taken into account from the perspective of the proportionality of the processing and its purpose. Example: The information published should be limited to what is strictly necessary. As a general rule, the full publication of a specific administrative resolution or a judicial ruling is not lawful; rather, the anonymization of personal data not necessary for the intended purpose must be carried out (...)"

In this case, there is no doubt that the publication of the minutes along with its annex on the company committee's bulletin board by its president violated these limits, breaching the regulations on personal data protection, since:

- There is no legal provision that allows for the full publication of the content of the minutes issued during a consultation period held in connection with a collective dismissal for technical reasons, such as the present case.

It should be noted that the minutes referred to in this procedure do not, by themselves, imply the termination of employment contracts, but rather agree to extinguish them, indicating the number of affected workers,

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9/16

identifying them with 9 personal data, and establishing in its second clause that the terminations will be carried out in a staggered manner.

In our Labor Law, dismissal, in its various forms, is communicated in writing and individually to the dismissed worker, who is the interested party and recipient of this communication duty. And collective dismissal is no exception, since Article 51.4 of the Workers' Statute states that the dismissal must be individually notified to each affected worker, indicating the following: "4. Once the agreement has been reached or the decision has been communicated to the representatives of the workers, the employer may notify the dismissals individually to the affected workers, which must be done in accordance with the provisions of Article 53.1. In any case, at least thirty days must have elapsed between the date of communication of the opening of the consultation period to the labor authority and the effective date of the dismissal." This is confirmed by Article 14 of Royal Decree 1483/2012, of October 29, which approves the Regulation of collective dismissal procedures, which indicates that this notification will take the form of a written communication individually notified to the worker according to Article 53 of the Workers' Statute, and will correspond, moreover, to the company itself, and not to the Works Council.

In conclusion, from the labor regulations outlined, it is deduced that the legitimate interest in knowing about the dismissal belongs to the dismissed worker, and is fulfilled with the individual notification to them, which will be carried out by the company, subsequent to the minutes of the conclusion of the consultation period that agrees to the termination of the contracts. Had it been considered that all workers have a legitimate interest in knowing what has been agreed during the consultation phase of

the collective dismissal process, including the identity of the workers affected by the dismissal, the possibility or obligation to publish or make known in a general manner the result of the final minutes of the consultation period would have been provided for in the regulations governing collective dismissal processes, and this is not the case.

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On the other hand, while it is true that the representatives of the workers have the authority to publish on the bulletin board that the company makes available to them "matters that are of interest to the workers," in accordance with Articles 81 and 68.d) of the Workers' Statute.

But this authority cannot operate as an unlimited open clause that allows for the publication or revelation of personal data affecting all workers indiscriminately, but must be exercised with due respect to the regulations on the protection of personal data.

That is, in the event that the president of the Works Council had considered that the publication of the minutes agreeing to conclude the consultation period of the collective dismissal process should be known by all workers, as it is a matter of general interest, they could have done so while protecting the personal data of the workers affected by the dismissal, anonymizing them prior to publication. It should not be forgotten that, in addition to being a representative of the workers, the

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10/16

The respondent was also responsible for the processing of the personal data contained in the record that he decided to disclose for public knowledge, and therefore he should have acted in accordance with the provisions of the personal data protection regulations.

However, as he himself acknowledges in the aforementioned email dated February 6, 2023, he did not act with the diligence required of a data controller in possession of personal data, as he had a copy of said record, and he omitted his duty of confidentiality regarding the personal data that appeared in the body of the record (which should have been anonymized), and in the annex (which should not have been stapled to the notice board).

This implied a violation of the principle of integrity and confidentiality contained in Article 5.1.f) of the GDPR, since the respondent had the right to know the personal data contained in the record of the collective dismissal process, and the duty to inform the workers of matters of their interest, but this did not authorize him to disclose all the personal data contained in the record of the conclusion of the collective dismissal process without any limitation and without anonymizing it.

Consequently, in accordance with the evidence available at this time, and without prejudice to the outcome of the investigation, it is considered that the facts presented could violate the provisions of Article 5.1.f) of the GDPR, for unlawfully disclosing the personal data of the 43 workers that appeared in the record of the conclusion of the consultation period of the collective dismissal that was published on the notice board of the works council by the respondent.

IV

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violating the principle of integrity and confidentiality provided for in Article 5.1.f) of the GDPR.

Specifically, if the reality of the reported facts is confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states (the underlining is ours):

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

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11/16

For the purposes of the statute of limitations for infringements, Article 72 "Infringements considered very serious" of the LOPDGDD applies, which states (the underlining is ours):

"1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures that have been applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

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12/16

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the data processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42.

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

It is also considered appropriate to adjust the sanction to be imposed in accordance with the criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD: "In

accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or data processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In light of the facts under review, the balance of the circumstances contemplated in Article 83.2 of the GDPR and in Article 76 of the LOGDPDD allows for the initial imposition of a fine of €1,000 (ONE THOUSAND EUROS) regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR.

V

Adoption of corrective measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the responsible party or data processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe..."

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

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13/16

It is noted that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated in the proceedings prior to the initiation of this sanctioning procedure PS/00068/2023, as well as Document 1 submitted by letter dated January 10, 2024, within the sanctioning procedure PS/00447/2023 (email dated February 6, 2023, sent by the respondent to the director of the company DIMAGAZA), as they constitute evidentiary evidence of the facts for which the infringement is attributed in this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €1,000 (ONE THOUSAND EUROS) without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to make allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 800 euros, resolving the procedure with the imposition of this sanction.

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14/16

In the same way, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 800 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be set at [Insert the corresponding text of 600 euros].

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (800 euros or 600 euros), you must make it effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of deposit to the General Inspection Subdirectorato to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On May 16, 2024, the respondent has proceeded to pay the sanction in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, the voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased.

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16/16

reglamentariamente."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the termination of procedure EXP202401784, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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